

August 26, 2026

VIA EDIS

The Honorable Lisa R. Barton
Secretary to the Commission
U.S. International Trade Commission
500 E Street, S.W., Room 112
Washington, DC 20436

Re: *Certain Wearable Devices*, Inv. No. 337-1478

Dear Secretary Barton,

On behalf of Respondents Ouraring Inc. and Oura Health Oy (collectively, “Oura”), enclosed please find Oura’s responsive discovery letter submitted to ALJ Johnson Hines on August 19, 2026. *See* Ex. 1. The attached is being filed pursuant to Order No. 13 in the above-referenced investigation and is responsive to Complainants’ filing at EDIS Doc. ID 892705.

Sincerely,
/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*

Exhibit 1

August 19, 2026

The Honorable Doris Johnson Hines
Administrative Law Judge
U.S. International Trade Commission
500 E Street, S.W.
Washington, DC 20436

Re: *Certain Wearable Devices*, Inv. No. 337-1478 – Response to Samsung’s
Discovery Dispute

Dear Honorable Judge Johnson Hines,

I write in response to Samsung’s discovery dispute letter dated August 18, 2026. As discussed in more detail below, Dr. Mortazavi’s rebuttal report does not present new theories that were not previously disclosed warranting a motion to strike and there is no prejudice to Samsung.

I. Background regarding Oura Ring Gen. 1 dispute

Oura Ring Gen. 1 has been disclosed as prior art from the start of this investigation, including in Oura’s invalidity contentions and Dr. Mortazavi’s opening report. Samsung acknowledges as much. *See* Samsung Aug. 18 Ltr. at 2; CMC (July 2) Tr. at 7:3-25.

During the July 2nd CMC, the ALJ instructed Samsung to determine “is there anything new that would rise to the level of a new opinion on that prior art product ... that would or could rise to the level of a motion to strike.” CMC Tr. at 20:19-21:5. The ALJ also instructed that “[w]hat the parties should focus on in addressing the issues is whether there are actual new opinions, or whether they are reasonable elaboration on those opinions And [] consider whether the parties can agree on supplementation if that would be useful or necessary.” *Id.* at 11:9-17.

At the time of the July 2nd CMC, no expert depositions had occurred. CMC Tr. at 14:22-15:1. And in response to Samsung’s original request for “leave to submit a sur-rebuttal report responding to the new material in Dr. Mortazavi’s Rebuttal Report” (June 29, 2026 Samsung Discovery Ltr.) and the ALJ’s recommendation to see “whether the parties can agree on supplementation,” Oura indicated that it had no objections to Samsung submitting any sur-rebuttal report to address any opinions on Gen. 1 that Samsung believed were new opinions. *See* Oura’s June 30th Response Ltr. at 3 (“Samsung has an opportunity to depose Dr. Mortazavi next week. Oura also agrees to allow Samsung to serve a sur-rebuttal report”); CMC Tr. at 14:11-12 (“If Samsung wants to file a surreply or surrebuttal, we are okay with it.”).

Samsung elected not to exercise the leave that Samsung itself sought. Instead, Samsung stayed silent for nearly a month after the CMC, until reraising the issue on July 29, 2026. *See* Ex. A (Samsung July 29 Follow-up). In the meantime, Samsung deposed Dr. Mortazavi for over 11 hours over two days, including on his opinions on Oura Ring Gen. 1 [REDACTED]. The expert

discovery closed on July 9, 2026 without any surrebuttal report being served by Samsung.

In its current dispute letter, Samsung does not allege any prejudice. Instead, Samsung suggests that it suffered harm: “As the Federal Circuit noted in *BearBox LLC v. Lancium LLC*, this leaves Samsung with ‘no meaningful opportunity to conduct rebuttal discovery, prepare a supplemental rebuttal report, or prepare for an additional deposition.’ 125 F.4th 1101, 1116 (Fed. Cir. 2025).” Samsung Ltr. at 2. But this is categorically false as Samsung had an opportunity to submit a rebuttal report (it chose not to) and prepare for an additional deposition (as it did) by deposing Dr. Mortazavi for over two days following the submission of his rebuttal report. Samsung’s request to strike Dr. Mortazavi’s rebuttal report should be rejected on this basis alone.

II. Oura is Not Presenting New Invalidity Opinions

Dr. Mortazavi’s rebuttal report does not include new opinions regarding Oura Ring Gen. 1 that were not previously disclosed in either Oura’s contentions or opening report—but even if, *arguendo*, it did, the point is moot because Oura has explicitly cabined all expert invalidity theories that it will be offering at the evidentiary hearing to those in Dr. Mortazavi’s initial report. In other words, Oura will not rely on Dr. Mortazavi’s rebuttal report for support for any invalidity theory that he offers, and Oura’s prehearing brief exclusively relied upon Dr. Mortazavi’s initial report.

In fact, Oura explicitly represented this to Samsung in its July 30, 2026 correspondence regarding the evidentiary hearing: “Dr. Mortazavi’s invalidity opinions on the Gen. 1 product when mapping against the asserted claims will be rooted in opinions that he offered in his opening invalidity report, errata, and deposition, which is consistent with the Ground Rules and the ALJ’s statement at the CMC.” Ex. B at 2. And “[t]o the extent Samsung believes that Dr. Mortazavi is going outside the scope of his opinions at trial, Samsung can raise those objections then just as the parties did during the 1468 hearing.” *Id.* Oura’s proposed compromise was in response to the ALJ’s instructions to the parties at the CMC on what the Court would find most useful. CMC Tr. at 20:6-8 (“What I can say is in considering infringement, I want to hear about the accused product, and in considering invalidity, I want to hear about the prior art”); *Id.* at 11:18-23 (“I’d like to focus on [] what the issues are that are going to be presented at hearing, and that is on the one hand on infringement, whether or not the accused products meet the asserted claims, and for invalidity, whether or not the identified prior art meets the asserted claims.”).

This approach is best. First, withdrawal of any paragraph is inappropriate given that the invalidity theories have not changed from Dr. Mortazavi’s initial report. Second, Oura is concerned that even if it did withdraw a paragraph, this would only invite further disputes—Samsung would presumably argue that an opinion offered at trial was withdrawn, Oura would point to support in Dr. Mortazavi’s initial report, and at best the parties would be back exactly where they started, and at worst Samsung would argue prejudice on that basis that Oura agreed to withdraw an argument.

Third, and perhaps most importantly, Oura’s approach does not require the ALJ to resolve arguments now, in the abstract. If, at trial, Samsung believes that Dr. Mortazavi has gone beyond his initial report, Samsung may object, and the objection can be resolved by reference to Dr. Mortazavi’s initial report. This, too, is enough to resolve the present dispute.

III. Should the ALJ wish to resolve this issue now, the opinions in Dr. Mortazavi’s rebuttal report are not new.

Dr. Mortazavi’s rebuttal report, at most, offered reasonable elaborations that specifically responded to Samsung’s infringement expert report by noting that the [REDACTED]

that are cited by Samsung for infringement is also in Oura Ring Gen. 1, and did not diverge from his initial report at all.¹

Indeed, much of what Samsung alleges is “new opinion” (highlighted in red in Ex. A of its letter) are simply statements by Dr. Mortazavi that “Oura Ring Gen. 1 includes . . . [REDACTED].” See Samsung Ex. A., ¶¶147, 165, 166 (“[REDACTED]”). But as the ALJ noted at the CMC, “comparing an accused product to a prior art product is not actually an invalidity argument. That’s not.” CMC Tr. at 13:4-7. Such a comparison may be valuable to a *Communique*-type argument to be made by attorneys in post-trial briefing, showing how if Samsung’s infringement arguments are to be accepted, then Oura’s invalidity arguments are strengthened on the basis that claims should be afforded the same meaning for invalidity as for infringement. But the actual invalidity theories being presented by Oura will not change.

Furthermore, what Samsung suggests is “new evidence” highlighted in either purple or citation to deposition testimony highlighted in yellow in Samsung’s exhibit is neither. In advance of the parties’ meet and confer, Oura provided a chart explicitly mapping the support for Dr. Mortazavi’s rebuttal report against his opening report. See Ex. C (Aug. 11 correspondence) and Ex. D (Support Chart). Samsung never explains in its letter any disagreements with the charting nor did Samsung explain the basis for any disagreement during the parties’ meet and confer. Instead, Samsung simply stated that it disagrees with Oura’s position without further elaboration. In its discovery letter, Samsung argues that “[REDACTED] is not mentioned in either Dr. Mortazavi’s Opening Report or in Oura’s invalidity contentions.” Samsung Ltr. at 3. But as Oura had noted to Samsung in the support chart, “the [REDACTED] is within the [REDACTED] path that Dr. Mortazavi cites in his opening.” Ex. D at 1. Samsung does not dispute this support but instead elects to focus on whether those words were in the report.

What Samsung leaves out is that the reason that Dr. Mortazavi could not offer such nuance, including this specific variable, before his rebuttal report was due to Samsung’s own deficient infringement contentions. As explained in detail in Oura’s June 30th discovery dispute response letter when this issue first arose, Dr. Mortazavi’s opening expert report described in detail how Oura Ring Gen. 1 source code disclosed each limitation by citing to the relevant file paths and Gen. 1 [REDACTED]. See Ex. E (Oura discovery response June 30 Ltr.) at 1-2. Samsung’s infringement contentions, prior to the expert reports, had simply pointed to large swaths of file paths of Oura Ring Gen. 4 source code with “see e.g.” without identifying any specific functions or line codes. *Id.* It was not until Samsung’s opening expert reports when Samsung, for the first time, identified the specific functions and source code lines from within the firmware file paths that Samsung alleged were infringed by Oura Gen. 4. *Id.* In response, Dr. Mortazavi’s rebuttal report noted that even those [REDACTED]. This is merely a “sub-opinion” of the opinion already rendered, matching the new detail at first opportunity. In sum, Dr. Mortazavi’s rebuttal report were a reasonable elaboration on his existing opinions—not any new opinions.

¹ To be clear, Oura acknowledges that there is no practicing prior art defense nor is Oura advancing such a theory. See CMC Tr. at 3:25-4:3; 4:21-5:21. In fact, Oura reemphasized this to Samsung in July 30 correspondence. See Ex. B at 2 (“Oura has now repeatedly stated on the record and repeats here: Oura is not/will not forward a practicing the prior art defense”).

Sincerely,
/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

Exhibit A

337-TA-1478: Samsung MTS Follow Up ([REDACTED])



dstrainor@omm.com

Jul 29, 2026, 1:22 PM

To: oura-itc@mayerbrown.com

Cc: omm-samsung-oura@omm.com

1 attachment - Expires: 1785988799000

Team Oura,

In follow up to the July CMC, attached is a copy of the Mortazavi rebuttal report with highlighting to indicate the new invalidity theories and evidence/testimony not presented in his opening report. The highlighting is color coded, as follows:

- Red – new invalidity theory
- Purple – new invalidity evidence in support of new theory
- Yellow – new invalidity deposition testimony in support of new theory

If Oura disagrees with regard to any of these highlighted sections, please identify where in the opening expert report the theories or evidence/testimony may be found. We plan to ask that Mortazavi be precluded from relying on any of these new theories and support. We are available to meet and confer Friday and Monday in advance of Tuesday's CMC. We'd appreciate your response in advance of the meet and confer so we can discuss in the meet and confer before the CMC.

Regards,

Sean

 1 attachment:

Expires: Aug 05, 2026

2026.06.26 B. Mortazavi Rebuttal Expert Report [CBI-SC] - New Invalidity Opinions Highlighted.pdf



27.6 MB

Exhibit B

Jas Vidwan

From: Jas Vidwan
Sent: Saturday, August 1, 2026 9:58 AM
To: Pensabene, Marc J.; Trainor, D. Sean; #OMM-SAMSUNG-OURA
Cc: WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS
Subject: Re: 337-TA-1478: Samsung MTS Follow Up ([REDACTED])

Marc - Monday at 5pm ET works for us for m&c. Feel free to send an invite.

Have a great weekend.

Jas

From: Pensabene, Marc J. <mpensabene@omm.com>
Sent: Friday, July 31, 2026 12:28 PM
To: Jas Vidwan <JVIDWAN@mayerbrown.com>; Trainor, D. Sean <dstrainor@omm.com>; #OMM-SAMSUNG-OURA <OMM-SAMSUNG-OURA@omm.com>
Cc: WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS <Oura-ITC@mayerbrown.com>
Subject: RE: 337-TA-1478: Samsung MTS Follow Up ([REDACTED])

Jas,

We disagree with all three points of your response.

First, your letter appears to be based on an incorrect premise - i.e., so long as the opinions in the rebuttal report are not "inconsistent" with the opening report, they are proper. That is not the issue - the issue is whether there are new opinions raised for the first time in the rebuttal report. Samsung submits that the portions of the rebuttal report it highlighted are new. If Oura's position is that these highlights are not new, then Oura should have no objection to withdrawing these portions of the rebuttal report.

Second, whether Mr. Larson testifies live or not, Dr. Mortazavi's reliance on that testimony (live or by deposition) to offer new opinions not set forth in the opening report is improper. Again, if Oura's position is that these are not new opinions, then it should have no objection to withdrawing these portions of the rebuttal report.

Third, your characterization of Dr. Mortazavi's Ring 4/Ring 1 comparison as an invalidity opinion only serves to reinforce our position that such opinions should have been set forth in detail in his opening report, not the rebuttal. And Samsung's ability to object to testimony outside the scope of the reports does not address the issue of the improper inclusion of new opinions in the rebuttal report.

Accordingly, please let us know by close of business today if Oura agrees to withdraw the portions of the rebuttal report highlighted by Samsung. If Oura does not agree, we are available to meet and confer at 5pm ET on Monday.

Best
Marc

From: Jas Vidwan <JVidwan@mayerbrown.com>

Sent: Thursday, July 30, 2026 5:42 PM

To: Trainor, D. Sean <dstrainor@omm.com>; #OMM-SAMSUNG-OURA <OMM-SAMSUNG-OURA@omm.com>

Cc: WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS <Oura-ITC@mayerbrown.com>

Subject: RE: 337-TA-1478: Samsung MTS Follow Up ([REDACTED])

Sean:

We are in receipt of your correspondence and highlighted Mortazavi rebuttal report. We disagree with the overall thrust of your positions.

First, Dr. Mortazavi's rebuttal report does not offer any new invalidity opinions. As was noted in the July 2 CMC, he points to [REDACTED] and the same file paths as he did in his opening report. July 2 CMC Tr. at 9:19-10:1. To this end, the ALJ had specifically instructed Samsung to identify "anything new that would rise to the level of a new opinion on that prior art product, which you seem to be aware of, it has been identified as prior art, is there something so new in those opinions in the rebuttal infringement report that would or could rise to the level of a motion to strike." *Id.* at 20:24-25:5. None of your highlighting of alleged new theories in the rebuttal report point to any inconsistency from the positions that Dr. Mortazavi took in his opening report with respect to Gen. 1 that would rise to the level of new opinions. And to the extent that Samsung believed that there were any opinions, Samsung had an opportunity to address them in a sur-rebuttal report (as Samsung requested and Oura agreed) but elected to not do so. June 29, 2026 Samsung Discovery Dispute Ltr. at 4 ("Samsung respectfully requests . . . leave to submit a sur-rebuttal report responding to the new material in Dr. Mortazavi Rebuttal Report due within ten days from a ruling on this request."); July 2 CMC Tr. at 14:11-19 ("If Samsung wants to file a surreply or surrebuttal, we are okay with it"). Thus, Oura maintains that Dr. Mortazavi's rebuttal report does not include any new invalidity arguments.

Second, Samsung suggests that Dr. Mortazavi's citations to Mr. Larson in the rebuttal report are "new invalidity deposition testimony in support of new theory." Not so. In his opening report, Dr. Mortazavi noted that he reviewed Larson's deposition testimony and had also spoken with him. See Opening Report, ¶ 1317; Mortazavi Deposition Tr. at 48:10-50:4. Thus, again there is no new support for his existing positions. Nonetheless, the issue with Larson deposition testimony is moot because Larson will testify live at the evidentiary hearing. As Oura's corporate witness, Larson will testify as to both the relevant source code of Oura Ring Gen. 1 and Accused Products.

Third, Oura has now repeatedly stated on the record and repeats here: Oura is not/will not forward a practicing the prior art defense and Dr. Mortazavi's invalidity opinions on the Gen. 1 product when mapping against the asserted claims will be rooted in opinions that he offered in his opening invalidity report, errata, and deposition, which is consistent with the Ground Rules and the ALJ's statement at the CMC. CMC Tr. 11:18-23 ("But right now, what I'd like to focus on is what the issues are that are going to be presented at hearing, and that is on the one hand on infringement, whether or not the accused products meet the asserted claims, and for invalidity, whether or not the identified prior art meets the asserted claims."). To the extent Samsung believes that Dr. Mortazavi is going outside the scope of his opinions at trial, Samsung can raise those objections then just as the parties did during the 1468 hearing.

In sum, we do not see a need to raise this issue again with the ALJ at the August 4 conference. But if Samsung still wants to raise it, we are generally available for meet and confer on Monday, August 3rd between 3:30-6pm ET.

Best,

Jas

Jasjit S. Vidwan

Partner

Mayer Brown LLP

1999 K Street, NW

From: dstrainor@omm.com <dstrainor@omm.com>
Sent: Wednesday, July 29, 2026 1:22 PM
To: WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS <Oura-ITC@mayerbrown.com>
Cc: omm-samsung-oura@omm.com
Subject: 337-TA-1478: Samsung MTS Follow Up ([REDACTED])



dstrainor@omm.com sent you a secure message

[Access message](#)

Team Oura, In follow up to the July CMC, attached is a copy of the Mortazavi rebuttal report with highlighting to indicate the new invalidit..

 Attachments expire on Aug 05, 2026



1 PDF

2026.06.26 B. Mortazavi Rebuttal Expert Report [CBI-SC] - New Invalidity Opinions Highlighted.pdf

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Exhibit C

Jas Vidwan

From: Jas Vidwan
Sent: Tuesday, August 11, 2026 1:53 PM
To: 'Pensabene, Marc J.'; WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS; Schroeder, Nancy L.
Cc: #OMM-SAMSUNG-OURA
Subject: RE: 337-TA-1478 - Case Management Conference Agenda
Attachments: Support Chart.docx

Marc,

In advance of our meet and confer, I'm attaching a chart reflecting the support for Dr. Mortazavi's opinions in his rebuttal report from his opening report. After review of all the highlights that Samsung circulated, Oura maintains that there are no new invalidity theories in Dr. Mortazavi's rebuttal report.

While we disagree with the premise of Samsung's argument, in the interest of narrowing the disputes, Oura agrees to withdraw the following paragraphs of Dr. Mortazavi's rebuttal report: ¶¶162, 174, 182, 190, 197, 200, 210, 223, 239, 250, 276, 296, 305, 309, 329, 399, 409, 419, 423, 435, 446, 452, 459, 473, 475, 477, 516, 532. But to be clear, withdrawal of these paragraphs is made while reserving all rights, including to rely on similar paragraphs in Dr. Mortazavi's initial report on the basis that they are in his initial report.

To the extent that any highlighted paragraph is not included in the attached support chart does not mean that Oura agrees that there is no support for those opinions in Dr. Mortazavi's opening. It's most likely an oversight. If you identify any highlighted paragraphs that are missing from the attached, we'd be happy to provide you the support / response.

Best,

Jas

Jasjit S. Vidwan

Partner

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Washington, DC 20006-1101
T +1 202 263 3065
mayerbrown.com

From: Pensabene, Marc J. <mpensabene@omm.com>
Sent: Monday, August 10, 2026 6:30 PM
To: Jas Vidwan <JVidwan@mayerbrown.com>; WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS <Oura-ITC@mayerbrown.com>; Schroeder, Nancy L. <nschroeder@omm.com>
Cc: #OMM-SAMSUNG-OURA <OMM-SAMSUNG-OURA@omm.com>
Subject: RE: 337-TA-1478 - Case Management Conference Agenda

Jas,

We are available at 4pm ET tomorrow and will send an updated invite. As I previously suggested, if you send us your response ahead of the call it may help expedite the discussion.

Marc

From: Jas Vidwan <JVidwan@mayerbrown.com>

Sent: Thursday, August 6, 2026 5:11 PM

To: Pensabene, Marc J. <mpensabene@omm.com>; WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS <Oura-ITC@mayerbrown.com>; Schroeder, Nancy L. <nschroeder@omm.com>

Cc: #OMM-SAMSUNG-OURA <OMM-SAMSUNG-OURA@omm.com>

Subject: RE: 337-TA-1478 - Case Management Conference Agenda

Marc,

Thanks for sending the list of highlight opinions that Samsung is withdrawing from its assertion that they are new theories. We're still working through the remaining highlights and intend to provide you with the chart mapping the highlights in rebuttal to opening. Thus, we need to push our tomorrow's m&c to next Tuesday. We're available Tuesday, Aug. 11 any time after 2pm ET. We'll endeavor to get you the chart before the M&C.

Jas

From: Pensabene, Marc J. <mpensabene@omm.com>

Sent: Wednesday, August 5, 2026 6:43 PM

To: Jas Vidwan <JVidwan@mayerbrown.com>; WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS <Oura-ITC@mayerbrown.com>; Schroeder, Nancy L. <nschroeder@omm.com>

Cc: #OMM-SAMSUNG-OURA <OMM-SAMSUNG-OURA@omm.com>

Subject: RE: 337-TA-1478 - Case Management Conference Agenda

Jas,

Further to the below, attached is list of highlights that are withdrawn. All others remain the same. If you want to send us a list of additional highlight sections that you think are found in the opening report, along with an identification of those sections you believe to be corresponding, we would be happy to consider them in advance of the call. We look forward to discussing on Friday.

Best
Marc

From: Pensabene, Marc J.

Sent: Wednesday, August 5, 2026 9:05 AM

To: 'Jas Vidwan' <JVidwan@mayerbrown.com>; 'WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS' <Oura-ITC@mayerbrown.com>; Schroeder, Nancy L. <NSchroeder@omm.com>

Cc: #OMM-SAMSUNG-OURA <OMM-SAMSUNG-OURA@omm.com>

Subject: RE: 337-TA-1478 - Case Management Conference Agenda

Jas,

We are available Friday morning at 10am ET. I will send an invite

Marc

From: Pensabene, Marc J.

Sent: Tuesday, August 4, 2026 7:55 PM

To: 'Jas Vidwan' <JVidwan@mayerbrown.com>; Schroeder, Nancy L. <NSchroeder@omm.com>; WDC-CLIENT-OuralITCService-EXTERNAL-CONTACTS <Oura-ITC@mayerbrown.com>

Cc: #OMM-SAMSUNG-OURA <OMM-SAMSUNG-OURA@omm.com>

Subject: RE: 337-TA-1478 - Case Management Conference Agenda

Jas,

Yes, we will get back to you tomorrow with any changes to the highlights. We will also get back to you on the time for the meet and confer.

Marc

From: Jas Vidwan <JVidwan@mayerbrown.com>

Sent: Tuesday, August 4, 2026 7:20 PM

To: Pensabene, Marc J. <mpensabene@omm.com>; Schroeder, Nancy L. <nschroeder@omm.com>; WDC-CLIENT-OuralITCService-EXTERNAL-CONTACTS <Oura-ITC@mayerbrown.com>

Cc: #OMM-SAMSUNG-OURA <OMM-SAMSUNG-OURA@omm.com>

Subject: RE: 337-TA-1478 - Case Management Conference Agenda

Marc,

I'm available either Thursday afternoon or Friday morning ET for follow-up meet and confer.

To make the call productive, it would be helpful to have Samsung circulate an updated rebuttal highlighting of opinions that Samsung contends are new opinions. As we discussed during our Monday call, a number of alleged "new theories" were word-for-word from the expert's opening expert report. Samsung acknowledged as much. Please let us know if you can provide us your revised positions by tomorrow so we have time to review in advance of our call. In the meantime, Oura will also review the report from your original highlighting.

Jas

Jasjit S. Vidwan

Partner

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From: Pensabene, Marc J. <mpensabene@omm.com>

Sent: Tuesday, August 4, 2026 5:16 PM

To: Jas Vidwan <JVidwan@mayerbrown.com>; Schroeder, Nancy L. <nschroeder@omm.com>; WDC-CLIENT-OuralITCService-EXTERNAL-CONTACTS <Oura-ITC@mayerbrown.com>

Cc: #OMM-SAMSUNG-OURA <OMM-SAMSUNG-OURA@omm.com>

Subject: RE: 337-TA-1478 - Case Management Conference Agenda

Jas,

We still have not heard back from you regarding Oura's availability for a follow up meet and confer on the issue of the new invalidity opinions. Please let us know by noon ET tomorrow your availability this week. As we agreed, both parties should be reviewing the highlights we made in the rebuttal report to see if there are corresponding statements in the opening report.

Best
Marc

From: Jas Vidwan <JVidwan@mayerbrown.com>
Sent: Monday, August 3, 2026 12:03 PM
To: Schroeder, Nancy L. <nschroeder@omm.com>; WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS <Oura-ITC@mayerbrown.com>
Cc: #OMM-SAMSUNG-OURA <OMM-SAMSUNG-OURA@omm.com>
Subject: RE: 337-TA-1478 - Case Management Conference Agenda

Nancy –

Samsung is of course free to request the CMC move forward. But it would be inaccurate to state that "parties jointly propose" the agenda you listed. Please accurately indicate that it is Samsung that is making that request.

Oura will of course provide its response to your email to the ALJ.

Jas

Jasjit S. Vidwan

Partner
Mayer Brown LLP
1999 K Street, NW
Washington, DC 20006-1101
T +1 202 263 3065
mayerbrown.com

From: Schroeder, Nancy L. <nschroeder@omm.com>
Sent: Monday, August 3, 2026 12:00 PM
To: Jas Vidwan <JVidwan@mayerbrown.com>; WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS <Oura-ITC@mayerbrown.com>
Cc: #OMM-SAMSUNG-OURA <OMM-SAMSUNG-OURA@omm.com>
Subject: RE: 337-TA-1478 - Case Management Conference Agenda

Jas –

Oura's effort to include argument in an email that, according to the Ground Rules, is intended to provide a simple joint agenda, is inappropriate. (Please note that at the last CMC, the ALJ directed the parties to meet and confer but did not order further letter briefing on the matter.) It is also inconsistent with your positions with respect to prior agenda where you objected to Samsung including additional information or context for the ALJ. Nevertheless, we would agree to include the attached email chain.

To the extent that the parties' meet and confer today is fruitful and resolves the issues, we will of course inform the ALJ that a CMC is unnecessary. Otherwise, we believe the issue identified is ripe for raising with the ALJ, and intend to send the below, attaching the email chain, shortly.

Dear ALJ Johnson Hines:

The parties jointly propose the following agenda for the CMC on Tuesday, August 4:

1. Continuation of argument regarding Complainants' letter seeking to strike portions of Dr. Bobak Jack Mortazavi's rebuttal expert report. The parties continue to meet and confer on these issues (including at 5 pm ET today) and attach the latest emails between the parties in case it is helpful.

Sincerely,
Nancy

O'Melveny

Nancy Lynn Schroeder

nschroeder@omm.com

O: +1-213-430-8266

M: +1-774-571-8677

From: Jas Vidwan <JVidwan@mayerbrown.com>

Sent: Monday, August 3, 2026 8:38 AM

To: Schroeder, Nancy L. <nschroeder@omm.com>; WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS <Oura-ITC@mayerbrown.com>

Cc: #OMM-SAMSUNG-OURA <OMM-SAMSUNG-OURA@omm.com>

Subject: RE: 337-TA-1478 - Case Management Conference Agenda

Nancy,

Neither party submitted a letter to the ALJ pursuant to G.R. 5.6.1.1. As such, it would be more appropriate for the Parties to give the ALJ some context of the issues other than stating that this is just a continuation of arguments from a month ago. This is especially true since the parties have not even completed the meet and confer that the ALJ requested.

To this end, it would be helpful to add Samsung's July 29th email and corresponding attachment with Samsung's highlights, along with the attached email chain. We have provided our proposed edits to the draft Joint email below.

Alternatively, if Samsung wants to request that the ALJ hold the CMC, Oura will submit its fulsome response to the ALJ in advance of the CMC meeting.

Jas

*****DRAFT EMAIL TO ALJ*****

Dear ALJ Johnson Hines:

Samsung propose the following agenda for the CMC on Tuesday, August 4:

1. Continuation of argument regarding Complainants' letter seeking to strike portions of Dr. Bobak Jack Mortazavi's rebuttal expert report.

Oura's Position:

Oura does not believe that this issue is ripe for CMC. Neither party submitted a discovery dispute letter pursuant to the ground rules. During the July 2nd CMC, the ALJ instructed the parties to meet and confer to see "whether there are actual new opinions, or whether they are reasonable elaboration on those opinions"

regarding Oura Ring Gen. 1 “[a]nd if it’s appropriate, consider whether the parties can agree on supplementation if that would be useful or necessary.” CMC Tr. at 11 at 1-17; *Id.* at 20:24-21:5 (“is there anything new that would rise to the level of a new opinion on that prior art product, which you seem to be aware of, it has been identified as prior art, is there something so new in those opinions in the rebuttal infringement report that would or could rise to the level of a motion to strike.”). Samsung took no action for full four weeks before reraising the issue in its July 29th correspondence. In the interim, Samsung provided no supplemental or rebuttal report on Oura Ring Gen.1 that Samsung itself had requested, and Oura had agreed to during the July 2 CMC.

As Oura explained to Samsung in its July 30th correspondence, Dr. Mortazavi’s rebuttal report does not offer any new invalidity opinions. In his rebuttal report, he points to [REDACTED], and the same file paths as he did in his opening report. Samsung, however, appears to take issue with Dr. Mortazavi indicating that the source code that Samsung’s infringement expert relies on for infringement is [REDACTED] [REDACTED] Oura Ring Gen. 1. But as the ALJ noted in the July 2 CMC, “comparing an accused product to a prior art product is not actually an invalidity argument.” July 2 CMC Tr. at 13:4-7.

And to the extent that Samsung has any concerns that Dr. Mortazavi, when presenting his invalidity arguments at the hearing mapping Oura Ring Gen. 1 to the claims, would exceed the opening report or his deposition, Oura also communicated to Samsung in the July 30th correspondence that “Oura is not/will not forward a practicing the prior art defense and Dr. Mortazavi’s invalidity opinions on the Gen. 1 when mapping against the asserted claims will be rooted in opinions that he offered in his opening invalidity report, errata, and deposition, which is consistent with the Ground Rules.” July 30 Email from J. Vidwan to S. Trainor.

The parties’ meet and confer that the ALJ had requested is scheduled for later this evening. To the extent that the parties are unable to resolve the issues during the meet and confer, Samsung can always request a subsequent CMC with parties providing their complete positions in the discovery dispute letters. If the ALJ is inclined to entertain Samsung’s arguments during tomorrow’s CMC without the benefit of any papers, Oura respectfully requests permission to submit a letter in advance of tomorrow’s CMC.

Sincerely,

Nancy

Jasjit S. Vidwan

Partner

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Washington, DC 20006-1101

T +1 202 263 3065

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From: Schroeder, Nancy L. <nschroeder@omm.com>

Sent: Monday, August 3, 2026 10:43 AM

To: WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS <Oura-ITC@mayerbrown.com>

Cc: #OMM-SAMSUNG-OURA <OMM-SAMSUNG-OURA@omm.com>

Subject: 337-TA-1478 - Case Management Conference Agenda

Counsel –

Below is a proposed joint email to the ALJ providing the agenda for tomorrow’s case management conference. Please let us know if you have any edits or questions.

Thank you,
Nancy

Dear ALJ Johnson Hines:

The parties jointly propose the following agenda for the CMC on Tuesday, August 4:

1. Continuation of argument regarding Complainants' letter seeking to strike portions of Dr. Bobak Jack Mortazavi's rebuttal expert report.

Sincerely,
Nancy

O'Melveny

Nancy Lynn Schroeder

Counsel

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Exhibit D

Samsung’s Highlighting of Mortazavi Rebuttal Expert Report	Mortazavi Opening Expert Report
¶¶ 135-136, 150, 157-159, 184, 213, 224, 253, 387, 388, 402, 420, 421, 447, 478, 502, 518.	Dr. Mortazavi noted that he reviewed Larson’s deposition testimony and had also spoken with him in preparation of his opening report and forming his opinions. <i>See</i> Opening Report, ¶ 1317; Mortazavi Deposition Tr. at 48:10-50:4. Dr. Mortazavi’s citations to Larson deposition testimony in his rebuttal report is not new invalidity deposition testimony in support of any new theory.
¶¶ 162, 174, 182-183, 190, 197, 200, 210, 211, 213-15, 223, 224, 306, 324, 326, 400, 402, 427, 428, 429, 430-432, 447, 504, 520, 530	Stating that [REDACTED] is not an invalidity opinion.
¶159	¶¶ 1370, 1376
¶¶163-172, 175, 176, 177	¶¶1369-1370, 1376 (“[REDACTED]”). Note, [REDACTED]
¶¶191-192	¶1381, 1384
¶¶198, 201, 203	¶1386 (pp. 455-462) (Both rebuttal and opening discuss [REDACTED])

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	[REDACTED] which is the same one cited in opening).
¶¶212, 213	¶¶1390,1394 (both rebuttal and opening cite to source code [REDACTED])
¶216	¶¶1388-96
¶224	¶¶1400-1402
¶¶225-226	¶1402 (same [REDACTED] in both rebuttal and opening)
¶¶240-44	¶1413 (opening cites to [REDACTED] in both opening and rebuttal, and the same [REDACTED])
¶251	¶1422 (same [REDACTED] in both opening and rebuttal)
¶¶277-291	¶¶1451-52 (source code in rebuttal report is from the [REDACTED]). Also, same opinions regarding [REDACTED])
¶¶297, 299,	¶¶1456-1458
¶307, 310-311	¶¶1462 (Discussion of the same [REDACTED])
¶327, 330-332	¶¶1474-75
¶¶401, 403	¶¶2390-91 (citing to [REDACTED] in both reports)
¶¶411-413	¶¶2396-2399
¶¶421-429, 432, 437, 438	¶¶2407-2408 (opening expert report refers to the [REDACTED])
¶441-443	¶2410-2413

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¶453-454, 460-61	¶2417 (discussing the same [REDACTED] [REDACTED] [REDACTED])
¶462-463	¶2421-2422
¶¶474-475, 477	¶¶2433
¶504	¶2486 (citing the same [REDACTED])
¶511	¶¶2490-2495
¶¶521-522, 523-524	¶2499-2501
¶525-529, 533, 535	¶¶2499-2501 (citing to same [REDACTED])

Exhibit E

June 30, 2026

The Honorable Doris Johnson Hines
Administrative Law Judge
U.S. International Trade Commission
500 E Street, S.W.
Washington, DC 20436

Re: *Certain Wearable Devices*, Inv. No. 337-1478 – Oura Response to Samsung’s
Discovery Dispute

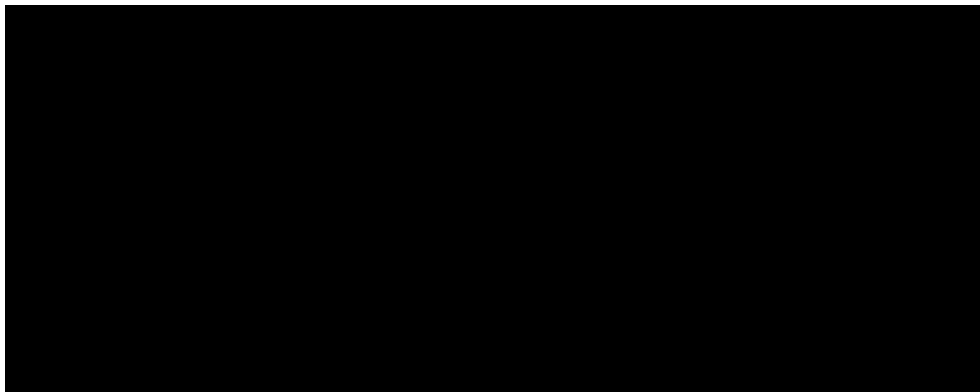
Dear Honorable Judge Johnson Hines,

I write in response to Samsung’s discovery dispute letter dated June 29, 2026 seeking to strike Oura’s rebuttal expert report. As discussed in more detail below, Dr. Mortazavi’s rebuttal report does not present new theories that were not previously disclosed warranting a motion to strike and there is no prejudice to Samsung as no expert has been deposed yet and Samsung has an opportunity to challenge Dr. Mortazavi’s opinions. Moreover, any prejudice (which there is none) would be even further removed by allowing Samsung to file its proposed sur-rebuttal report.

I. Oura Ring Gen. 1 contentions have been disclosed from the start of the Investigation

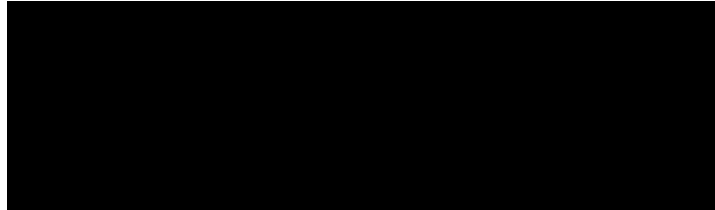
For three of the four asserted patents, Samsung alleges infringement of basic features of Oura Ring Gen. 4 that have been the foundation of Oura Ring dating back to its original Gen. 1 that was released in 2015—prior to the effective date of U.S. Patent Nos. 10,945,677 (“677 patent”), 10,231,675 (“675 patent”), and 10,978,789 (“789 patent”). Indeed, in most instances,

as noted by Dr. Mortazavi. *See, e.g.*, Samsung Ltr., Ex. A, ¶¶164-168. Because of the similarities, Oura disclosed Oura Ring Gen. 1 in its invalidity contentions during fact discovery along with identification of specific source code files, exemplary functions, and line ranges:



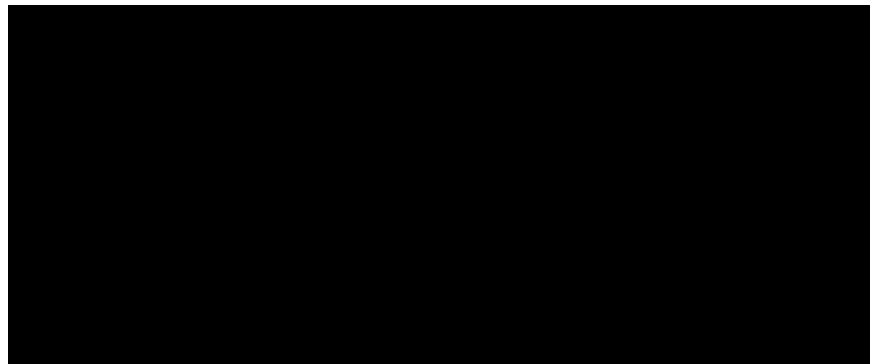
See e.g., id. at Ex. C (Oura Invalidity Contentions) at 368-69 (Chart mapping Gen. 1 to '675 patent); *id.* at 679-78 (Chart mapping Gen. 1 to '677 patent) (same); *id.* at 1487-1516 (showing hardware structure of Gen. 1 against '789 patent). And for each algorithm limitation, Oura further identified the exemplary portions of a technical specification, including [REDACTED]

[REDACTED] that met the claimed limitation:



See e.g., id. at 401-402; *id.* at 718-20. Consistent with Oura's invalidity contentions, Dr. Mortazavi's opening expert report described in detail how Oura Ring Gen. 1 was in public use (*See e.g., Samsung Ltr., Ex. B* at ¶¶1302-1335) prior to the '677, '675, and '789 patents and how the Gen. 1 source code disclosed each limitation by citing to the relevant file paths or printed circuit board stack diagrams of Oura Ring Gen. 1. *See e.g., id.* at ¶¶1358, ¶¶3390-91.

Oura's citations to Oura Ring Gen. 1 [REDACTED] and file paths in both the invalidity contentions and opening expert report were more detailed than Samsung's infringement contentions that, by comparison to Oura, simply added "see e.g." and pointed to large swaths of the file paths of Oura Ring Gen. 4 source code without identifying specific functions or line codes:



Ex. 1 (Samsung's '675 patent infringement chart) at 1; *see also* Ex. 2 ('677 patent infringement chart) at 22-23. But as noted above, [REDACTED]

It was not until Samsung's opening expert reports when Samsung, for the first time, identified the specific functions and source code lines from within the firmware file paths that Samsung alleged were infringed by Oura Gen. 4. *See e.g., Ex. 3* (Samsung's Opening expert report of Dr. Welch) at ¶¶373, 375, 376. In response, Dr. Mortazavi's rebuttal report noted that [REDACTED]

[REDACTED]. *See Samsung Ltr., Ex. A*, at ¶154 ([REDACTED]).

Thus, what is arguably “new” in Dr. Mortazavi’s report are simple side-by-side comparison charts mapping Gen 1 code against Gen. 4. But those positions were in the invalidity contentions and Dr. Mortazavi’s opening report by their citation to the file paths and algorithms. The citations to specific source code lines [REDACTED] is not “new invalidity theory” as alleged by Samsung. Dr. Mortazavi could not have provided the side-by-side comparison until his rebuttal report because Samsung elected to hide the ball on its own infringement theory until expert reports by pointing to host of file paths in the contentions as opposed to specific functions and source code lines. In sum, Samsung’s complaint is a problem of its own making.

Samsung also alleges that Dr. Mortazavi offered new theories of invalidity by opining in his rebuttal “[REDACTED].” Samsung Ltr. at 2. First, this issue relates to a typographical error that will be addressed in an errata sheet as the error was caused due to an incorrect statement from Samsung’s expert, Dr. Welch’s, opening report. *See, e.g., Ex. 3 (Welch Opening Rpt.)* at ¶¶103, 234 ([REDACTED]). Second, any inconsistencies are proper topics for deposition and cross examinations—not grounds to strike opinions. There are no new theories.¹

Finally, Samsung’s reliance on “practicing prior art” argument is also a red herring. Whether Oura’s theories are proper is a question of law not at issue here which is focused solely on whether to strike the opinions that are allegedly new or untimely.² Simply put, nothing in Dr. Mortazavi’s rebuttal report warrants striking his opinions on Gen. 1.

II. There is no prejudice to Samsung

Samsung does not (and cannot) argue that it was not on notice of Oura’s Gen. 1 positions. The heart of Samsung’s dispute is that Samsung wants to avoid the optics of having the Court see the side-by-side comparison of its infringement theories against [REDACTED] Gen. 1. The reason is transparent: Samsung recognizes that its own infringement positions walk them into invalidity challenge. Samsung cannot thread the needle of alleging infringement of certain functions which were also in Oura Ring Gen. 1 prior to the effective filing date of its three patents. But Samsung’s difficult balancing act is not grounds for striking Dr. Mortazavi’s opinions.

Samsung has an opportunity to depose Dr. Mortazavi next week. Oura also agrees to allow Samsung to serve a sur-rebuttal report to the extent it does so before the experts are deposed (as Oura offered on its meet and confer) and not allow Samsung to further game the schedule by completing the depositions and *then* submit a sur-rebuttal report. In sum, the ALJ should reject Samsung’s invitation to strike Dr. Mortazavi’s expert opinions.

¹ Oura’s additional stackup diagram mappings for the ’789 patent were in direct response to Samsung’s expert, Dr. Warren’s, new “Third Alternative Mapping” theory that is the subject of Oura’s June 29th discovery letter. *See* Samsung Ltr., Section IV, at 3 (citing ¶ 627).

² Samsung is also wrong on the law as Samsung’s own citation *helps* Oura. In *01 Communique Lab’y*, Citrix’s expert argued that, if Communique expanded the scope of its claim to include certain subject matter (the accused Citrix GoToMyPC product), the claims would be invalid in light of Citrix’s prior art system (BuddyHelp product), and the Federal Circuit stated that “[t]here was nothing improper about this argument.” *01 Communique Lab’y, Inc. v. Citrix Systems, Inc.*, 889 F.3d 735, 741-742 (Fed. Cir. 2018).

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Sincerely,
/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

EXHIBIT 1

REDACTED IN ITS ENTIRETY

EXHIBIT 2

REDACTED IN ITS ENTIRETY

EXHIBIT 3

REDACTED IN ITS ENTIRETY

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **DISCOVERY DISPUTE LETTER TO JUDGE JOHNSON HINES** was served upon the following as indicated below on June 30, 2026:

The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W., Room 317 Washington, DC 20436	Via email and Box: JohnsonHines1478@usitc.gov
Counsel for Complainants Samsung Electronics Co., Ltd and Samsung Electronics America, Inc. D. Sean Trainor O'MELVENY & MYERS LLP 1625 Eye Street, NW Washington, D.C. 20006-4061 Telephone: (202) 383-5300	Via email: OMM-SAMSUNG-OURA@OMM.COM

/s/ Jasjit S. Vidwan
Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **DISCOVERY DISPUTE LETTER TO JUDGE JOHNSON HINES** was served upon the following as indicated below on August 19, 2026:

The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W., Room 317 Washington, DC 20436	Via email and Box: JohnsonHines1478@usitc.gov
Counsel for Complainants Samsung Electronics Co., Ltd and Samsung Electronics America, Inc. D. Sean Trainor O'MELVENY & MYERS LLP 1625 Eye Street, NW Washington, D.C. 20006-4061 Telephone: (202) 383-5300	Via email: OMM-SamsungOura@OMM.com

/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **RESPONSIVE DISCOVERY DISPUTE LETTER REGARDING MOTION TO STRIKE (PUBLIC VERSION)** was served upon the following as indicated below on September 4, 2026:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, DC 20436	Via EDIS
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W., Room 317 Washington, DC 20436	Via email and Box: JohnsonHines1478@usitc.gov
Counsel for Complainants Samsung Electronics Co., Ltd and Samsung Electronics America, Inc. D. Sean Trainor O'MELVENY & MYERS LLP 1625 Eye Street, NW Washington, D.C. 20006-4061 Telephone: (202) 383-5300	Via email: OMM-SamsungOura@OMM.com

/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*